

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Bernardo Gutierrez	Team: Team # 5	CCRB Case #: 201011153	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/12/2010 11:00 PM	Location of Incident: The intersection of § 87(2)(b) [REDACTED] [REDACTED]		18 Mo. SOL 2/12/2012		Precinct: 44
Date/Time CV Reported Thu, 08/12/2010 11:12 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/12/2010 11:12 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Nivia Fontanez	21868	946999	PBBX
2. POM Alexis Dejesus	01421	946903	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexis Dejesus	Abuse: PO Alexis Dejesus stopped § 87(2)(b) [REDACTED]	A . Complainant Uncooperative
B . POF Nivia Fontanez	Abuse: PO Nivia Fontanez stopped § 87(2)(b) [REDACTED]	B . Complainant Uncooperative

Case Summary

On August 12, 2010, at approximately 11:00 p.m. § 87(2)(b) was walking home from his aunt's house and was stopped by Officer Nivia Fontanez and Officer Alexis Dejesus at the intersection of § 87(2)(b) and § 87(2)(b) in the Bronx (**Allegation A and Allegation B**). PO Fontanez asked § 87(2)(b) for ID, which he provided. PO Fontanez checked § 87(2)(b)'s ID for open warrants and § 87(2)(b) was released without a summons or arrest.

On August 12, 2010, § 87(2)(b) filed this complaint with CCRB via telephone. On August 17, 2010, § 87(2)(b) provided a telephone statement regarding the incident. During this statement, § 87(2)(b) stated that he wished to make an additional complaint and articulated allegations of force, abuse of authority and discourtesy regarding a complaint that had been forwarded to the Office of the Chief of the Department by an investigator from Team 5. On August 19, 2010, Team 3 forwarded this complaint to Team 5. On August 26, 2010, § 87(2)(b), accepted the CCRB's mediation program as a way to resolve this complaint. On September 9, 2010, a mediation referral report for the case was submitted. On January 20, 2011, § 87(2)(b) was contacted by the ADR Unit of CCRB by telephone and he stated that he did not wish to pursue mediation § 87(2)(b).

On January 20, 2011, the case was returned to the undersigned investigator. § 87(2)(b) was called five times, on January 20, January 25, January 26, January 28 and February 1, 2011. Voicemail messages were left with each call. § 87(2)(b) was sent two letters, none of which have been returned. As of the date this was written, § 87(2)(b) has not contacted CCRB. On February 3, 2011, a search of the NYC Department of Correction website indicated that § 87(2)(b) was not currently incarcerated. It is therefore recommended that **allegation A and allegation B be closed as complainant uncooperative.**

Team: 5

Investigator: _____	Bernardo Gutierrez	2/3/11
Signature	Print	Date
Supervisor: _____	_____	_____
Title/Signature	Print	Date
Reviewer: _____	_____	_____
Title/Signature	Print	Date
Reviewer: _____	_____	_____
Title/Signature	Print	Date